

File No.: EXP202306428

RESOLUTION OF RECONSIDERATION APPEAL

Examined the reconsideration appeal filed by Mr. A.A.A. (hereinafter, the appellant) against the resolution issued by the Director of the Spanish Agency for Data Protection, dated February 8, 2024, and based on the following

FACTS

FIRST: On February 8, 2024, a resolution was issued by the Director of the Spanish Agency for Data Protection in file EXP202306428, proceeding to archive the preliminary investigation proceedings. This resolution was notified to the appellant on February 12, 2024, as evidenced by the acknowledgment of receipt in the file.

SECOND: The appellant submitted, on March 11, 2024, to this Spanish Agency for Data Protection, a reconsideration appeal, fundamentally arguing that the resolution now being appealed contains false statements, as the respondent has oriented the cameras towards the appellant's residence, as evidenced in the complaint filed against them, which includes videos proving that recordings extend beyond their own residence and the easement. They accompany supporting documentation of the complaint filed.

LEGAL GROUNDS

I

Competence

The Director of the Spanish Agency for Data Protection is competent to resolve this appeal, in accordance with the provisions of Article 123 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter LPACAP) and Article 48.1 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter, LOPDGDD).

II

Response to the allegations presented

In relation to the statements made by the appellant, the following should be noted:

The complaint filed and archived concerned the installation of a video surveillance system in a residence located opposite the residence of the now appellant, which, due to its location and orientation, was capable of capturing images of areas outside the claimant's property, potentially capturing images of the claimant's residence and a path that has an easement for access to the claimant's residence.

After analyzing the documents that make up the administrative file, the following points relevant to our purposes are evident:

The photographs submitted by both parties demonstrate that there is a system of video cameras.

The photographs sent by the respondent verify that the captured images are confined to the private areas of their residence, except for the portion of the easement minimally necessary for the intended security purpose. This last point is corroborated by the data collected in the complaint provided by the appellant; the recordings are limited to the party walls of the residences of the respondent and the appellant, proving that there have been reasons justifying the recording of images for subsequent submission to the Courts.

Therefore, given the circumstances at hand, it can be stated that the data processing has been adequate and relevant concerning the intended purpose (data minimization principle). The orientation of the cameras is taken into consideration, which allows for verification that it follows the usual parameters in video surveillance aimed at ensuring the safety of persons, property, or facilities.

III

Conclusion

Consequently, in the present reconsideration appeal, the appellant has not provided new facts or legal arguments that would allow for a reconsideration of the validity of the contested resolution.

In view of the cited provisions and others of general application, the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO DISMISS the reconsideration appeal filed by Mr. A.A.A. against the resolution of this Spanish Agency for Data Protection issued on February 8, 2024, in file EXP202306428.

SECOND: TO NOTIFY this resolution to Mr. A.A.A.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (LPACAP), the interested parties may file a contentious-administrative appeal before the Contentious-Administrative Chamber of the C/ Jorge Juan, 6

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National Court, in accordance with the provisions of Article 25 and Section 5 of the Fourth Additional Provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within a period of two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

Finally, it is noted that in accordance with the provisions of Article 90.3 a) of the LPACAP, the firm resolution in the administrative pathway may be provisionally suspended if the interested party expresses their intention to file a contentious-administrative appeal. If this is the case, the interested party must formally communicate this fact by means of a written document addressed to the Spanish Agency for Data Protection, submitting it through the Electronic Registry of the Agency [<https://sedeagpd.gob.es/sede-electronica-web/>], or through any of the other registries provided for in Article 16.4 of the aforementioned LPACAP. They must also provide the Agency with documentation that proves the effective filing of the contentious-administrative appeal. If the Agency is not aware of the filing of the contentious-administrative appeal within two months from the day following the notification of this resolution, it will consider the provisional suspension to be concluded.

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